All Domestic Relations cases will be heard by phone or video.
Go to http://www.cookcountycourt.org/LinkClick.aspx?fileticket=G7A8KAcSi8E%3d&portalid=0
to get more information and Zoom Meeting IDs.
Remote Court Date: No hearing scheduled

FILED
4/27/2026 4:49 PM
Mariyana T. Spyropoulos
CIRCUIT CLERK
COOK COUNTY, IL
2024D006724
Calendar, 11
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FILED DATE: 4/27/2026 4:49 PM 2024D006724

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT - DOMESTIC RELATIONS DIVISION

IN RE THE MARRIAGE OF:	)	
	)	
JOEL THORARINSON,	)	2024D006724
Petitioner/Counter-Respondent,	)	
	)	No. 2~~024 D 6724~~
v.	)	
	)	Cal. 11
HEATHER KIM ATAGAN,	)	
Respondent/Counter-Petitioner.	)	

INITIAL RESPONSE TO PETITIONER'S EMERGENCY MOTION TO STAY BODY ATTACHMENT AND COMPEL EXPEDITED FINANCIAL DISCLOSURE

NOW COMES the Respondent/Counter-Petitioner, HEATHER KIM ATAGAN ("HEATHER"), by and through her attorneys, FITZPATRICK TARARA FAMILY LAW, LLC, as and for her initial response to the Petitioner/Counter-Respondent, JOEL THORARINSON's ("JOEL") EMERGENCY MOTION TO STAY BODY ATTACHMENT AND COMPEL FINANCIAL DISCLOSURE ("MOTION"). In support thereof, HEATHER states as follows:

RESPONSE TO EMERGENCY BASIS

This matter is **not** an emergency because 1) the body attachment JOEL seeks to "stay" has not issued, and 2) the discovery JOEL seeks production of is not an emergency pursuant to Local Court Rule 13.4 or the General Administrative Order 2022 D 12 Amended.

JOEL's pleading fails to cite or even mention Local Court Rule 13.4 or General Administrative Order 2022 D 12 Amended (hereinafter "The Emergency GAO"), which requires that prior to any motion being heard, the movant must establish the emergency nature of the pleading General Administrative Order 2022 D 12 at ¶ 4(c)-(d), June 25, 2025. The Emergency GAO states, in pertinent part:

> **Emergency Defined.** An emergency is defined as a sudden and unforeseen circumstance that may cause injury, loss of life, or damage to property and that requires urgent response and remedial action.

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> Absent the risk of imminent harm or severe prejudice, the following matters will generally not be heard as an emergency:
>
> • Motions to establish or modify custody, set child support, paternity, or visitation, unless risk of imminent harm to child
> • Motions seeking execution of documents (e.g. tax returns, quit claim deeds)
> • Rules to show cause
> • Motions to Vacate an Order entered by the judge assigned to the case unless it involves an issue of endangerment to child

Id. at ¶ 2, June 25, 2025.

JOEL's Emergency Motion fails to cite to The Emergency GAO and therefore should be denied as improperly plead. JOEL's Emergency Motion fails to include any sudden, unforeseen circumstances that may cause any injury, loss of life, or damage to property that requires any urgent response and remedial action.

This matter is set for hearing on May 5, 2026, regarding HEATHER's FIRST and SECOND CONTEMPT PETITIONS. This hearing was set on February 20, 2026. JOEL cannot allege any sudden and unforeseen circumstances that may cause injury, loss of life, or damage to property to JOEL that requires any urgent response and remedial action. Further, any arguments JOEL wishes to make in defense of HEATHER's contempt petitions, may (and should be) presented at the scheduled hearing.

THE BODY ATTACHMENT IS NOT AN EMERGENCY

JOEL argues that the body attachment must be stayed immediately and that is cause for emergency relief. **The body attachment has not been issued.** On February 20, 2026, the Court entered an ORDER that states "Failure of the Petitioner to appear in person may result in a body attachment and/or finding contempt consistent with said rule(s)." Further, on April 20, 2026, the Court advised JOEL that if he did not appear in person on May 5, 2026, for the hearing, a body attachment may be issued. None of the forgoing issued the body attachment so there is nothing to "stay" or vacate as JOEL is requesting.

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DISCOVERY REQUESTS ARE NOT AN EMERGENCY

JOEL cannot allege any sudden and unforeseen circumstances that may cause injury, loss of life, or damage to property to JOEL that requires any urgent response and remedial action based on discovery. There will be no loss of life or any other basis for an emergency if the parties comply with Supreme Court Rules regarding the discovery process.

JOEL's Emergency Motion is nothing more than an attempt to avoid attending the hearing on May 5, 2026, by filing countless frivolous motions for no purpose other than to needlessly increase attorneys' fees and waste judicial resources.

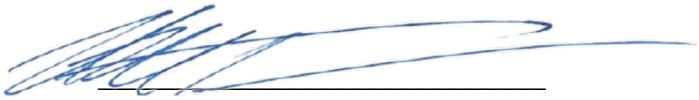
WHEREFORE, the Respondent/Counter-Petitioner, HEATHER KIM ATAGAN, respectfully requests this Honorable Court grant the following relief:

A. Enter an Order finding this matter is not an emergency;

B. Deny the Petitioner/Counter-Respondent, JOEL THORARINSON's EMERGENCY MOTION TO STAY BODY ATTACHMENT AND COMPEL FINANCIAL DISCLOSURE; and

C. Grant such other and further relief as this Honorable Court deems equitable and just.

Respectfully Submitted,



ANNEMARIE TARARA

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VERIFICATION

Under penalties as provided by law pursuant to 735 ILCS 5/1-109, I, **HEATHER KIM ATAGAN,** being first duly sworn and on oath depose and state that I am the Respondent/Counter-Petitioner in the above-captioned matter; that I have read the foregoing pleading and have knowledge of the contents thereof; and that the statements set forth in this instrument are true and correct, except as to matters therein stated to be on information and belief and as to such matters I certify as aforesaid that I verily believe the same to be true.

HEATHER KIM ATAGAN
Respondent/Counter-Petitioner

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